

Bharatiya Nyaya Sanhita,2023

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Substantive Law and Procedural Law

Aspect	Substantive Law	Procedural Law
Meaning	Substantive law defines **rights**, **duties**, and **offences**.	Procedural law provides the **method** and **process** for enforcing those rights or punishing offences.
Purpose	It lays down **what constitutes a crime or wrong** and prescribes the **punishment or remedy**.	It lays down **how a case proceeds** through the legal system—from investigation to trial and appeal.
Nature	Deals with **substantive rights and liabilities** of individuals.	Deals with **rules and mechanisms** to enforce those rights.
Application	Used to determine **whether a crime/wrong has been committed** and what the consequences are.	Used to determine **how a case is filed, investigated, heard, and decided**.
Impact	Directly affects the **rights and duties** of individuals.	Affects **legal proceedings** and the **course of justice**.

Definition of Crime

A crime is an act or omission which the law punishes

Crime is a public wrong or wrong against the state

State prosecutes and punishes him

Definition of Crime

1. William Blackstone

William Blackstone, an influential English jurist, provided one of the classic definitions of crime in his seminal work, "Commentaries on the Laws of England" (1765-1769). Blackstone defined a crime as:

> "An act committed or omitted in violation of a public law, either forbidding or commanding it."

2. Sir James Fitzjames Stephen

Sir James Fitzjames Stephen, a 19th-century English lawyer and judge, offered a more succinct definition in his work "A History of the Criminal Law of England" (1883). Stephen stated:

> "A crime is an act which is both forbidden by law and revolting to the moral sentiments of society."

Definition of Crimes

3. Courtney Stanhope Kenny

Courtney Stanhope Kenny, a prominent legal scholar, provided a comprehensive definition in his book "Outlines of Criminal Law" (1902). Kenny defined crime as:

> "A crime is a wrong to the public, which the law punishes by fine, imprisonment, or death.

IMPORTANT QUESTION : Critically compare the various definitions of crime?

Fundamental Elements of a Crime

Actus non facit reum nisi mens sit rea

An Act does not make a person guilty unless it done with a guilty intention

a) **Actus reus**
b) **Mens rea**





Actus Reus (Result of Human Conduct)

1. Actus Reus (Guilty Act)

This refers to the physical component of the crime – the actual action or conduct that constitutes the criminal offense. Actus reus can be:

- **Voluntary Act**: A physical action taken by the defendant.

Actus Reus (Result of Human Conduct)

Conduct

- Actus reus can involve specific conduct that the law defines as criminal. This can include actions like theft, assault, or driving under the influence.
- Example: Stealing someone's property involves the conduct of taking something without permission, which constitutes actus reus.



Actus Reus (Result of Human Conduct)

Omission (Failure to Act)

In some cases, failing to act can also constitute actus reus, but only when there is a legal duty to act.

The legal duty to act can arise from various sources:

- **Statute**: Certain laws explicitly require individuals to take specific actions (e.g., mandatory reporting of child abuse).
- **Contract**: A contractual obligation to act (e.g., a lifeguard's duty to rescue swimmers).
- **Special Relationship**: Relationships that impose a duty to act (e.g., parent-child, caregiver-elderly person).
- **Voluntary Assumption of Duty**: When someone voluntarily takes on the duty of care and then fails to fulfill it.
- **Creation of Risk**: If a person creates a dangerous situation, they have a duty to mitigate the risk.

MENS REA

A prohibited act will become a crime when it is accompanied by a certain state of mind

A crime = A prohibited act or omission + Guilty Mind

a) Intention

Intention indicates the state of mind of a man who not only foresees but also desires the possible consequences of his conduct.

Example :A poisons B’s food with the aim to kill B. This shows clear intent.

b) Knowledge

Knowledge as *mens rea* refers to a mental state where the accused is **aware** that their act is **likely** to cause a particular consequence, even if they do **not desire or intend** that consequence.Under law doing of an act with knowledge may constitute a crime.

Example :A knows a building is occupied and still sets it on fire. A didn’t intend to kill, but knew it was almost certain.

c) Recklessness/Rashness

When a person does an act with foresight of injury but still proceeds with the act, showing disregard for the consequences.

Example:A drives at 150 km/h through a crowded area, knowing the risk of hitting someone, but doesn’t care.



d) Negligence

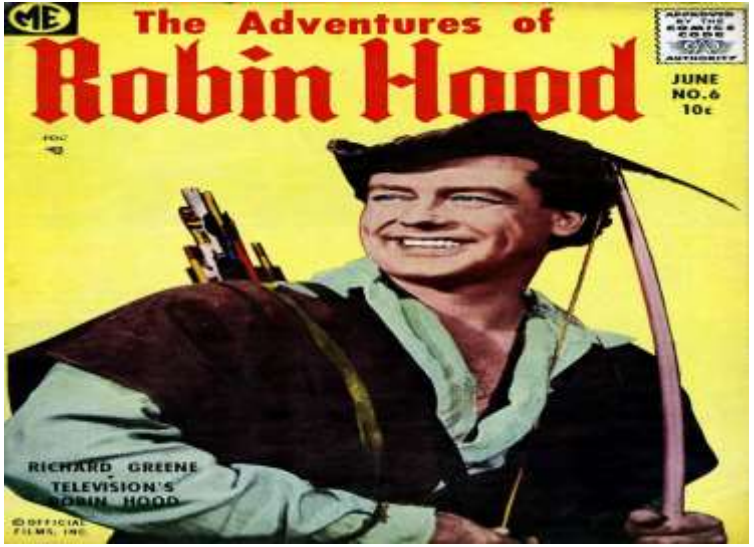
Means “want of care’. When a person who is bound to take care fails to take care as an ordinary prudent man, his mind is at fault and the faulty state of mind is known as negligence.



Motive v Intention

Motive is an attitude of the mind. It is the emotion that is promoting to do an act. Love, compassion, fear, jealousy, hatred, perversion lust. Are examples of emotions promoting us to do an act and they constitute motive

Intention v Motive in criminal law.



Exception to Men Rea

- Mens rea (guilty mind) is usually required to punish someone for a crime. But in some cases, the law **does not require mens rea**. These are called **exceptions**.

Strict Liability Offences

- No need to prove intention, knowledge, or carelessness.
- If the act is done, the person is punished.

Statutory Offences

- Some laws clearly say that mens rea is not needed.

R v Tolson (1889) – Honest Mistake (Mens Rea Defense)

Facts:

- Mrs. Tolson believed her husband had **died at sea**, as he was missing for **5 years**.
- She remarried.
- Later, her husband returned alive.
- She was charged with **bigamy** (marrying again while the first spouse is alive).

Issue:

- Is she guilty of bigamy, **even though she genuinely believed** her husband was dead?

Held (Decision):

- **She was not guilty.**
- The court accepted her **honest and reasonable belief** that her husband had died.
- This belief meant she had **no guilty mind (mens rea)**.

Case Laws

R v Prince (1875) – Strict Liability

Facts:

- Prince took a girl away from her father, believing she was **18 years old**.
- But she was actually **under 16**, and the law **did not allow** taking a girl under 16 from her parents without permission.
- He honestly believed she was above

Issue:

- Can he be punished **even though he didn't know** she was underage?

Held (Decision):

- **Yes, he was guilty.**
- The offence was one of **strict liability** – **his intention or knowledge didn't matter**.
- The law wanted to **protect young girls**, so **mens rea was not needed** for the girl's age.

Mens Rea in Statutory offences

There are certain enactments which define offences without mentioning the necessity of mens rea

State of Maharashtra v MH George (AIR 1965 SC 722)

Accused was german national

in transit flight from Zurich to

Manila. He was in sitting in the flight in Bombay

With gold carried from Zurich.



As per Indian rules a person is not allowed to bring gold without permission from RBI. MH George did not carry any permission.

Trial Court convicted him, High Court held that accused had no mens rea as he had brought the gold for mere transit to Manila. The Supreme Court held that mere bringing of gold into India in violation of Law itself is sufficient to attract punishment though there is not guilty mind.

Question : Mens Rea in Criminal in the context of MH George Case

Stages of Commission of a Crime

1. Intent or Mens Rea (Guilty Mind)

- **Definition**: This stage involves the mental state or intention of the perpetrator before committing the crime.
- **Characteristics**: It includes thoughts, planning, deliberation, or awareness of the consequences of one's actions.



2. Preparation

- **Definition**: During this stage, the perpetrator takes initial steps to carry out the intended crime.
- **Characteristics**: Activities may include gathering tools or materials, making plans, or seeking information.



3. Attempt

- **Definition**: An attempt occurs when the perpetrator begins to execute the crime but fails to complete it for some reason.
- **Characteristics**: The perpetrator takes concrete steps towards committing the offense, which demonstrates their intent.



4. Commission

- **Definition**: This stage involves the actual execution or completion of the criminal act.
- **Characteristics**: The perpetrator successfully carries out the planned offense, resulting in harm or damage.

5. Concealment or Post-Commission

- **Definition**: Following the commission of the crime, the perpetrator may take steps to conceal their involvement or evade detection.
- **Characteristics**: Actions may include hiding evidence, lying to authorities, or fleeing the scene.

- Abhayanand Mishra v. State of Bihar (AIR 1961 SC 1698)

The appellant applied to the Patna University for permission to appear at the 1954 M. A. Examination in English as a private candidate, representing that he was a graduate having obtained his B.A. Degree in 1951 and that he had been teaching in a certain school. The University authorities accepted the appellant's statements and gave permission and wrote to him asking for the remission of the fees and two copies of his photograph. nformation reached the University about the appellant's being not a graduate and being not a teacher. was convicted of the offence of attempting to cheat inasmuch as he, by false representations, deceived the University and induced the authorities to issue the admission card

Issue: Can the act be considered an attempt or mere preparation?

Held:The Supreme Court held that the act had crossed the stage of preparation and amounted to attempt. His conduct showed a direct movement towards the commission of the offence (cheating and forgery).

Theories of Punishment

The purpose of Criminal justice is to punish the wrong doer.

There is a difference of opinion as to the object and purpose of punishment. A number of theories have been propounded by various jurists concerning the object and purpose of punishment

There are 4 main theories of punishment

Retributive Theory

The purpose of punishment is retribution. The person who has committed the wrong should suffer. Punishment is an in itself. The theory recognizes the principle of “an eye for an eye, a tooth for a tooth”.

Thinkers

a) Kant: punishment must always be inflicted on him for the sole reason that he has committed a crime
b) James Stephen: the purpose of punishment is to gratify the desire for vengeance by making the criminal to suffer in person or purse.

Preventive Theory

The object of Punishment is prevention or disablement. The offender should be disabled from repeating the offences by punishment such as imprisonment, death, transportation for life, forfeiture of offices rtc.

James Holmes: Prevention is the chief and only universal purpose of punishment. By putting the criminal in jail he is prevented from committing crimes in future.

Deterrent theory

The object of punishment is to make the wrongdoer an example to other persons who have criminal tendencies. Punishment is to make the evil doer an example and a warning to all who are like minded persons. The object of the punishment according to this theory is to deter the ‘would be criminal’.

The result was severe and inhuman punishment



Reformative Theory

The object of punishment is reform the criminal.

Even if offenders commits a crime he does not cease to be a human being. He might have committed a crime under circumstances which may not occur again.

Crime is considered as considered as disease of mind. Punishment should be the medicine to the disease of mind.

Sympathetic, faithful and loving treatment of the offenders a revolutions change can be brought about in their characters.

Socialisation of the offers so that the factors that motivated him to commit the crime are eliminated and he gets a change of leading a free life in the society.

The Juvenile Justice act is based on the reformative theory

Important Case laws

1) TK Gopal v State of Karnataka (2000)6 SCC 168
2) State of Karnataka v Krishnappa (2000) 4 SCC 75

Question: Explain the advantages and disadvantages of each theory of punishment .

Punishments (Section 4)

a) Death
b) Life Imprisonment
c) Imprisonment which is of two descriptions

   Rigorous that is with hard labour

   Simple

a) Forfeiture of Property
b) Fine
c) Community Service

Death Sentence

Mithu v State of Punjab (AIR 1983 SC 473) the Supreme Court struck down s.303 of IPC as unconstitutional. S.303 provides

“that if a person under sentence of imprisonment of life commits murder he shall be punished with death.”

Identify the reason for this ?

Bachan Singh v State of Punjab (AIR 1980 SC 878)

Held that the death sentence is to be given on in rarest of the rare case. This is at present an important guiding principle for the awarding of capital sentence though it is retained in the Code.

Imprisonment for Life

The sentence of imprisonment for life is a sentence for life and therefore a prisoner sentenced to life imprisonment is bound to serve the remainder of his life in prison.

In Shankar Kisanrao Khade v State of Maharashtra (2013)5 SCC 546

It was held that a sentence of imprisonment for life means imprisonment for the rest of the normal life of the convict. However a convict can be released before the expiry of his life by the Government by following the procedure laid down in Section 432 CrPC or by Governor exercising power under Article 161 of the Constitution or by the President exercising power Article 72 of the Constitution.

Imprisonment

There are two description or kinds of imprisonment

In simple imprisonment, the offender is confined in jail and he is not put to any kind of labour

In rigorous imprisonment the offender is put to hard labour,such as grinding corn,digging earth etc

Phool Kumar V Tihar Central Jail(2012)8 SCC 183 it was held that a person sentenced to simple imprisonment cannot be required to work unless he volunteers himself to do work. But jail officer who requires a prisoner sentenced to rigorous imprisonment to do hard labour would be doing do as enjoined by law and mandated by court.

Thus while a person sentenced to simple imprisonment has the option to choosing to work, a person sentenced to rigorous imprisonment is required to undergo hard labour. HOwever undertrials are not required to work in jail.

Solitary Confinement

Solitary confinement may be awarded for offences punishable with rigorous imprisonment for any portion of the term of imprisonment.

Solitary confinement cannot be awarded for the whole terms of imprisonment.

Solitary confinement cannot exceed three month in whole. The three months period is to be imposed at intervals and not at a continuous s

Jurisdiction

- Jurisdiction refers to the authority of a court to try and decide a case.
- Under the **Bharatiya Nyaya Sanhita (BNS), 2023**, provisions are provided ; related to **territorial jurisdiction**, **offences committed outside India**, and **place of trial.**

Territorial Application of the BNS

Section1(3)

- The code applies to all person who have committed an offence under the BNS anywhere in India.
- Applies to both Indians and Foreigner.
- Anyone citizens and foreigners who has committed an offence punishable within the territory of India is amenable to the jurisdiction of Indian courts and liable to be punished.

- A was Pakistani Citizen residing in Pakistan. He made false representation to the victim who was India and frauded him out of 5 lakhs rupees .A was arrested and trial started in India. Can he be tried in India? Yes he can be since the whole crime occured in the territory of India (Mobarik Ali Ahmend v State of Bombay (AIR 1957 SC 857)

Extra -Territorial Application

Section 1(4) : Punishment for offences committed outside India

Gives criminal jurisdiction to the court to try for an offence committed by a person beyond the territory of India provided such a person is subject to Indian law.

Section 1(5): Extension of Code to extra-territorial offences.

a) Any citizen of Indian who commits offence outside India

b) Any person who commits offence on ship or air craft registered in India

c) Any person within or outside india targeting a computer resource in india.

Problems

a) X is citizen of India. He commits a murder in England. Whether he can be tried and convicted for Murder in India
b) X a foreigner commits a murder on boards a ship registered in India while ships was near South Africa. Can x be tried and convicted in India
c) A a citizen of america murdered an Indian citizen in England .Can he be tried in India

Important Definitions under BNS

a) Dishonestly

Important Conditions, an act of person can be treated as ‘dishonest’

a) He should have done the act
b) The act was done with the intention to cause ‘wrongful gain’ of any property to himself , or the act was done with intention to cause ‘wrongful loss’ of property to another person

Wrongful Gain or Wrongful Loss

Wrongful Gain

a) He should gain some property
b) He should gain the property by unlawful means
c) He should not be legally entitled to it



Wrongful Loss

a) There should be loss of some property to one person
b) The loss must be caused by unlawful means
c) The person suffers loss of property should be legally entitled to it.

Problem ?

Z is owner of a ring. The is ring is in the possession of Z. X steals the ring.

Important Definition

Voluntarily

A person is said to cause an effect "voluntarily" when they cause it by means whereby they intended to cause it, or by means which, at the time of employing those means, they knew or had reason to believe to be likely to cause it.

Key Points

1. **Intention or Knowledge**:
    - The person must have intended to cause the effect, or
    - The person must have known or had reason to believe that their actions were likely to cause the effect.
2. **Causation**:
    - The effect must be directly caused by the actions of the person.
    - There is an emphasis on the voluntary nature of the action, meaning it is done with purpose or awareness.

A sets fire by night to an inhabited house in a large town, for the purpose of facilitating a robbery and thus causes the death of a person.; Here A has caused death voluntarily.